

fall with his express and implied warranty claims under state law. Therefore, this court's disposition of the state law warranty claims determines the disposition of the Magnuson–Moss Act claims]; *In re Toyota Motor Corp. Unintended Acceleration Mktg., Sales Pracs., & Prods. Liab. Litig.* (C.D. Cal. 2010) 754 F.Supp.2d 1145, 1188 [“Defendants and Plaintiffs agree that Plaintiffs’ claims pursuant to the [MMWA are] ... dependent upon their state-law warranty claims.”]; and *Lathrop v. Thor Motor Coach, Inc.* (2024) 105 Cal.App.5th 808, 823 [while the MMWA “establishes a federal cause of action for breach of a written or an implied warranty,” it “does not substitute federal law for state law of consumer product warranties, but instead supplements state law.”].) Here, Plaintiff’s MMWA claims fail because Plaintiff has stated no viable state law breach of warranty claim.

5.

CASE #	CASE NAME	HEARING NAME
CVRI2506426	HUDIBURGH VS NGUYEN	MOTION TO BE RELIEVED AS COUNSEL FOR HUONG GIANG NGUYEN

Tentative Ruling: Defendant HUONG GIANG NGUYEN’s Counsel’s Motion to be Relieved as counsel is granted.

6.

CASE #	CASE NAME	HEARING NAME
CVRI2601557	CATANZARITE VS COUNTY OF RIVERSIDE	MOTION TO STRIKE

CASE #	CASE NAME	HEARING NAME
CVRI2601557	CATANZARITE VS COUNTY OF RIVERSIDE	DEMURRER

Tentative Ruling: Defendant County of Riverside’s UNOPPOSED Demurrer as to the 2nd Cause of Action is sustained with leave to amend within 20 days.

As to the Motion to Strike it is granted; specifically, Page 4, line 1: “and attorney’s fees,” and Page 11, line 5: “and attorney’s fees.”

In the absence of an opposition, the Court is entitled to consider the lack of response as an admission that the motion is meritorious (*Herzberg v. County of Plumas* (2005) 133 Cal.App.4th 1, 20). Because Petitioner has not briefed any issues in opposition, the Court deems any potential arguments against the set-aside to have been abandoned (*Arnold v. Dow Chemical Co.* (2001) 91 Cal.App.4th 698, 729).